MEMORANDUM OF AGREEMENT

KNOWN ALL MEN BY THESE PRESENTS:

The Memorandum of Agreement (MOA) is executed by and between:

BICOL UNIVERSITY, a state university created and existing by virtue of Republic Act No. 5521, as amended, with principal office address at Rizal Street, Legaspi City, represented in this instance by its **President, Dr. Baby Boy Benjamin D. Nebres III**, and hereinafter referred to as "**UNIVERSITY**";

-and-

[COMPANY NAME], with its principal office address at [COMPLETE COMPANY ADDRESS], represented herein by its [POSITION OF AUTHORIZED REPRESENTATIVE], **[NAME OF AUTHORIZED REPRESENTATIVE]**, who is duly authorized to represent it in this transaction, hereinafter referred to as "**COMPANY**".

WITNESSETH THAT:

WHEREAS, Section 4 of Republic Act No. 8292, otherwise known as 1997 Higher Education Modernization Act, State Universities and Colleges (SUCs) through their respective Board of Regents (BOR) are authorized to develop linkages with other institutions and agencies, both public and private, local or foreign, in furtherance of their purposes and objectives;

WHEREAS, pursuant to Section 3 of CHED Memorandum Order (CMO) No. 104, series of 2017, or the Revised Guidelines for Student Internship Program in the Philippines (SIPP) for All Programs, CHED shall require student internship and establishment by **UNIVERSITY**s of strong academic linkages with business, industry and duly recognized government and non-government organizations to promote and provide students with competitive skills and attitude for employment.

WHEREAS, under Section 14.2.1 (f) of the same CMO, it is one of the responsibilities of the **UNIVERSITY** to execute a duly notarized Memorandum of Agreement with the **COMPANY**;

WHEREAS, in working along its mission and towards its vision, **UNIVERSITY** acknowledges the need to develop and further equip its students not only in terms of theoretical knowledge, but also in terms of practical trainings;

WHEREAS, in realizing these objectives, **UNIVERSITY** acknowledges the importance of forging linkage and partnership with other agencies, and also industries that are capable of providing its students the necessary expertise and the required venue for practicum trainings or immersions that are most suitable and relevant to their area of specialization;

WHEREAS, UNIVERSITY proposes that its students be allowed to undergo internship program at the **COMPANY**'s facilities and offices, which proposal was accepted/approved by the latter, subject to terms and conditions provided for in this Memorandum of Agreement;

WHEREAS, UNIVERSITY and **COMPANY** have agreed to forge a linkage program to develop the manpower resources of the region, enhance and upgrade their respective course programs to make it relevant and responsive to the demands of national development;

NOW THEREFORE, for and in consideration of the foregoing premises and the covenants herein set forth, **UNIVERSITY** hereby agrees and binds with the **COMPANY** to extend full support and allow the use of its facilities, access to professional services of experts during the actual or on-site practicum training and immersions, in order to equip the students the practical knowledge and skills required by their respective academic programs or courses.

I. ROLES AND RESPONSIBILITIES OF PARTIES

A. Responsibilities of the UNIVERSITY

1. That the **UNIVERSITY,** through its internship program coordinators, shall formally endorse its student interns who are duly enrolled in the internship program during the regular school term in accordance with the existing curriculum as approved by the Commission on Higher Education (CHED) and the Department of Labor and Employment;

2. That **UNIVERSITY**, through its internship program coordinators, shall closely monitor the student interns through their respectively designated Internship Coordinators to help ensure that the student interns conduct themselves in line with the **COMPANY**'s policies and finish their assigned tasks pursuant to the Internship Plan;

3. That **UNIVERSITY**, through its internship program coordinators, shall ensure that the student interns will render the required number of hours within the period stated in their internship workplans;

4. The **UNIVERSITY**, through its internship program coordinators, may be allowed to conduct visits to the student interns, with or without notice, at least twice a month during their internship program;

5. That **UNIVERSITY**, through its internship program coordinators, shall ensure that the student interns obtained the consent or authority of their parents or guardian;

6. The **UNIVERSITY** may pull out the student interns from the **COMPANY** on reasonable grounds after a written notice about such pull-out;

7. The **UNIVERSITY**, through its internship coordinators, shall ensure that the student interns will observe the rules and regulations of the **COMPANY** specifically those involving confidentiality of information and/or company proprietary information; and

8. The **UNIVERSITY** shall hold harmless the **COMPANY** against any and all claims, demands, suits or loss, including all costs connected therewith, and for any damages if it is proven that the cause was due to the fault or negligence of the student or any representative of **UNIVERSITY**;

B. Responsibilities of the COMPANY

1. That the **COMPANY** shall accept and accommodate the recommended student interns of the **UNIVERSITY** for training and instructions with provisions for adequate and appropriate materials, facilities, and other plant/office resources necessary for acquiring realistic and worthwhile work-related experience and designate or assign a focal person from their end who shall be directly communicating or coordinating with the

UNIVERSITY faculty concerned as regards the implementation of the practicum or On – the-Job Training or Work Immersion Program;

2. The **COMPANY** shall ensure that the works or trainings given to the student interns of **UNIVERSITY** are in accordance with the approved and agreed internship workplan, and supplement the same with related theoretical instruments based on the agreed program;

3. The task and activities that may be assigned to the student interns are, but not limited to, the following: Work Application and Interview; Basic administrative tasks; Research, extension, and facilitating related tasks; Conduct and/or implement extension, project or program or activity; Produce Information, Education and Communication (IEC) materials/ module; and other related tasks that would meet the expected outcomes of the course;

4. The **COMPANY** shall allow the student interns the preference of choice on the schedule of his/her internship program and shall exercise direct control and supervision of the students while he/she is in the workplace;

5. The **COMPANY,** through its Human Resource Management Office, may formulate specific guidelines setting forth its policies for the compliance of the student interns during the internship period;

6. That the **COMPANY** is not obliged to compensate or remunerate the student interns for the services rendered during the period of the internship program;

7. The **COMPANY** reserves the right to immediately discontinue the on-the-job training of the student interns on reasonable grounds; and

8. The **COMPANY** will accomplish the duly accomplished evaluation sheet and other pertinent reports, information, and/or documents required by **UNIVERSITY** which may be included for purposes of describing student intern performances and issue a Certificate of Completion to the student interns within ten (10) to fifteen (15) working days after the completion of training; and

9. The **COMPANY** shall hold harmless the **UNIVERSITY** against any and all claims, demands, suits or loss, including all costs connected therewith, and for any damages if it is proven that the cause was due to the fault or negligence of the representative or personnel of the **COMPANY.**

II. EVENTS OF DEFAULT

The blacklisting of **COMPANY** and **UNIVERSITY** found to have committed the violations of the guidelines shall be dealt with in accordance with the appropriate sanctions stated in the CHED Memorandum Order (CMO) No. 104.

III. EXCLUSION OF PARTNERSHIP

The parties hereto expressly agree that nothing contained or implied in this Agreement shall constitute a partnership or joint venture within the parties hereto or any of them do not constitute nor be deemed to constitute any Party as an affiliate to any Party for any purpose whatsoever.

IV. SEVERANCE

If any provision of this Agreement or part thereof is rendered void, illegal or unenforceable by any legislation to which it is subject, it shall be rendered void, illegal or not enforceable only to that extent and no further.

V. SAFE SPACES ACT

Both parties shall adhere to the provisions set under the Republic Act No. 11313 otherwise known as "The Safe Spaces Act" as well the other relevant rules and regulations.

VI. CONFIDENTIALITY

The Agreement, as well as its terms and conditions herein shall be held in strict confidence and that no portion or part hereof may be reproduced or be revealed to any personnel or entity other that the signatories herein or their authorized representative.

VII. SEPARABILITY

The invalidity or unenforceability of any provision of the Agreement shall not affect or impair other provisions that are otherwise valid, binding and effective.

VIII. GOVERNING LAW AND ARBITRATION

Any complaint of an aggrieved party shall be settled amicably through means allowed under the existing laws. In the event that a particular dispute remains unsettled between the parties, resort to Grievance Machinery as referred to in the governing CHED Order may be resorted to.

The internship compliance of the students shall be in accordance with the internship plan of each course, pursuant to CHED Memorandum Order (CMO) No. 104, Series of 2017.

IX. NO EMPLOYER-EMPLOYEE RELATIONSHIP

It is expressly understood by the herein PARTIES that there is no employer-employee relationship between them.

X. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties, their successors and assigns. Any and all matters or things that the parties may have agreed, but have not reduced in writing herein, shall be void and ineffective.

XI. SUPPLETORY CLAUSE

The provisions of the CHED Memorandum Order (CMO) No. 104 and other applicable laws shall have suppletory application to this Agreement.

XII. DURATION AND AMENDMENT

This Agreement shall take effect on _____, and shall remain in force and effect for a period of three (3) years unless earlier terminated. Any modification, addition, and/or amendment to the terms of this agreement shall be done in writing and signed by all parties.

FOR THE BICOL UNIVERSITY:	**[COMPANY NAME]:**
DR. BABY BOY BENJAMIN D. NEBRES III SUC President IV	**[REPRESENTATIVE NAME]** [POSITION]

Signed in the presence of:

LILYBETH CAJUDAY
Dean, College of Science

[NAME OF WITNESS]
[POSITION]

ACKNOWLEDGEMENT

BEFORE ME, a notary public, for and in the above jurisdiction, personally appeared:

NAME	I.D. NO.	DATE/PLACE OF ISSUE

personally known to me and known to be the same persons who executed the foregoing instrument which they signed and acknowledged before me as their free and voluntary act and deed and the entities which they represent. The foregoing instrument relates to a MEMORANDUM OF AGREEMENT consisting of five (5) pages, including this page on which this acknowledgement is written, and has been signed at the bottom and on left margin of the first page thereof, by the parties and their instrumental witnesses, and sealed with my notarial seal.

IN WITNESS WHEREOF, I have hereunto set my hand this _____, in Legazpi, City, Philippines.

Doc No._____
Page No._____
Book No._____
Series of 20___.